

FLOOR AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB3129 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: Kevin West

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

HOUSE BILL NO. 3129

By: West (Kevin) of the House

and

Sacchieri of the Senate

FLOOR SUBSTITUTE

An Act relating to higher education; amending 70 O.S. 2021, Section 2120, as amended by Section 3, Chapter 18, O.S.L. 2022 (70 O.S. Supp. 2025, Section 2120), which relates to protected expressive activities on campus; permitting public institutions of higher education to charge security fees to students and student organization as part of an application for expressive activities; prohibiting public institutions of higher education from charging security fees based on the content of the student's or student organization's expression, the content of the student's or student organization's invited guest's expression, or the anticipated reaction to the student's, student organization's, or invited guest's expression; requiring any required security fee be based on content- and viewpoint-neutral criteria; directing public institutions of higher education to publish criteria on its website; requiring public institutions of higher education to provide notice to a student or student organization prior to the expressive activity an explanation of the security fee to be charged; providing an effective date; and declaring an emergency.

1 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

2 SECTION 1. AMENDATORY 70 O.S. 2021, Section 2120, as
3 amended by Section 3, Chapter 18, O.S.L. 2022 (70 O.S. Supp. 2025,
4 Section 2120), is amended to read as follows:

5 Section 2120. A. As used in this act:

6 1. "Campus community" means students, administrators, faculty,
7 and staff at the public institution of higher education and their
8 invited guests;

9 2. "Harassment" means only that expression that is unwelcome,
10 so severe, pervasive, and subjectively and objectively offensive
11 that a student is effectively denied equal access to educational
12 opportunities or benefits provided by the public institution of
13 higher education;

14 3. "Materially and substantially disrupts" means when a person,
15 with the intent to or with knowledge of doing so, significantly
16 hinders another person's or group's expressive activity, prevents
17 the communication of the message, or prevents the transaction of the
18 business of a lawful meeting, gathering, or procession by:

19 a. engaging in fighting, violent, or other unlawful
20 behavior, or

21 b. physically blocking or using threats of violence to
22 prevent any person from attending, listening to,
23 viewing, or otherwise participating in an expressive
24 activity. Conduct that "materially disrupts" shall

1 not include conduct that is protected under the First
2 Amendment to the United States Constitution or Section
3 22 of Article ~~2~~ II of the Oklahoma Constitution. Such
4 protected conduct includes, but is not limited to,
5 lawful protests in the outdoor areas of campus
6 generally accessible to the members of the public,
7 except during times when those areas have been
8 reserved in advance for other events, or minor, brief,
9 or fleeting nonviolent disruptions of events that are
10 isolated and short in duration;

11 4. "Outdoor areas of campus" means the generally accessible
12 outside areas of campus where members of the campus community are
13 commonly allowed, such as grassy areas, walkways, or other similar
14 common areas and does not include outdoor areas where access is
15 restricted from a majority of the campus community;

16 5. "Public institution of higher education" means any
17 institution within The Oklahoma State System of Higher Education or
18 technology center schools overseen by the State Board of Career and
19 Technology Education; and

20 6. "Student organization" means an officially recognized group
21 at a public institution of higher education, or a group seeking
22 official recognition, comprised of admitted students that receive or
23 are seeking to receive benefits through the public institution of
24 higher education.

1 B. Expressive activities protected under the provisions of this
2 section include, but are not limited to, any lawful verbal, written,
3 audio-visual, or electronic means by which individuals may
4 communicate ideas to one another, including all forms of peaceful
5 assembly, protests, speeches and guest speakers, distribution of
6 literature, carrying signs, and circulating petitions.

7 C. 1. The outdoor areas of campuses of public institutions of
8 higher education in this state shall be deemed public forums for the
9 campus community, and public institutions of higher education shall
10 not create "free speech zones" or other designated areas of campus
11 outside of which expressive activities are prohibited. Public
12 institutions of higher education may maintain and enforce reasonable
13 time, place, and manner restrictions narrowly tailored in service of
14 a significant institutional interest only when such restrictions
15 employ clear, published, content- and viewpoint-neutral criteria,
16 and provide for ample alternative means of expression. Any such
17 restrictions shall allow for members of the campus community to
18 spontaneously and contemporaneously assemble and distribute
19 literature.

20 2. Nothing in this subsection shall be interpreted as limiting
21 the right of student expression elsewhere on campus.

22 D. 1. Any person who wishes to engage in noncommercial
23 expressive activity on campus shall be permitted to do so freely, as
24 long as the person's conduct is not unlawful and does not materially

1 and substantially disrupt the functioning of the public institutions
2 of higher education, subject only to the requirements of subsection
3 C of this section.

4 2. Nothing in this subsection shall prohibit public
5 institutions of higher education from maintaining and enforcing
6 reasonable time, place, and manner restrictions that are narrowly
7 tailored to serve a significant institutional interest only when
8 such restrictions employ clear, published, content- and viewpoint-
9 neutral criteria. Any such restrictions shall allow for members of
10 the campus community to spontaneously and contemporaneously
11 assemble, speak, and distribute literature.

12 3. Nothing in this subsection shall be interpreted as
13 preventing public institutions of higher education from prohibiting,
14 limiting, or restricting expression that the First Amendment does
15 not protect or prohibiting harassment as defined by this section.

16 4. Nothing in this section shall enable individuals to engage
17 in conduct that intentionally, materially, and substantially
18 disrupts another person's expressive activity if that activity is
19 occurring in a campus space reserved for that activity under the
20 exclusive use or control of a particular group.

21 E. 1. Public institutions of higher education may charge
22 security fees to a student or student organization as part of an
23 application for expressive activities that require a permit. Public
24 institutions of higher education shall not charge security fees to a

1 student or student organization based on the content of the
2 student's or student organization's expression, the content of the
3 student's or student organization's invited guest's expression, or
4 the anticipated reaction to the student's, student organization's,
5 or invited guest's expression.

6 2. Any required security fee shall be based solely on content-
7 and viewpoint-neutral criteria including, but not limited to, the
8 time or location of the event, the anticipated size of the event
9 audience, and whether alcohol will be served. Any public
10 institution of higher education who charges security fees shall make
11 public in its handbooks, on its website, and through its orientation
12 programs for students the criteria used for assessing security fee
13 charges.

14 3. In every instance when a public institution of higher
15 education charges a security fee to a student or student
16 organization for their expressive activity, the public institution
17 of higher education shall notify the student or student organization
18 prior to the expressive activity. The notice shall explain the
19 security fee charged, including:

20 a. identifying the specific basis for the fee in the
21 public institution of higher education's published
22 criteria; and

23 b. explaining why the identified criteria are implicated
24 by the student or student organization's event.

1 F. Public institutions of higher education shall make public in
2 their handbooks, on their websites, and through their orientation
3 programs for students the policies, regulations, and expectations of
4 students regarding free expression on campus consistent with this
5 section.

6 ~~F.~~ G. Public institutions of higher education shall develop
7 materials, programs, and procedures to ensure that those persons who
8 have responsibility for discipline or education of students,
9 including, but not limited to, administrators, campus police
10 officers, residence life officials, and professors, understand the
11 policies, regulations, and duties of public institutions of higher
12 education regarding free expression on campus consistent with this
13 section.

14 ~~G.~~ H. 1. Each public institution of higher education shall
15 publicly post on its website, as well as submit to the Governor, the
16 Legislature, and the Chancellor of The Oklahoma State System of
17 Higher Education annually by December 31, a report that details the
18 course of action implemented to be in compliance with the
19 requirements of this section. A report shall also be given in the
20 instance of any changes or updates to the chosen course of action.
21 The information required in the report shall be:

- 22 a. accessible from the institution's website home page by
- 23 use of not more than three links,
- 24 b. searchable by key words and phrases, and

1 c. accessible to the public without requiring
2 registration or use of a user name, password or
3 another user identification.

4 2. The report shall include:

5 a. a description of any barriers to or incidents of
6 disruption of free expression occurring on campus,
7 including but not limited to attempts to block or
8 prohibit speakers and investigations into students or
9 student organizations for their speech. The
10 description shall include the nature of each barrier
11 or incident, as well as what disciplinary action, if
12 any, was taken against members of the campus community
13 determined to be responsible for those specific
14 barriers or incidents involving students without
15 revealing those students' personally identifiable
16 information, and

17 b. any other information each public institution of
18 higher education deems valuable for the public to
19 evaluate whether free expression rights for all
20 members of the campus community have been equally
21 protected and enforced consistent with this act.

22 3. If a public institution of higher education is sued for an
23 alleged violation of First Amendment rights, a supplementary report
24 with a copy of the complaint, or any amended complaint, shall be

1 submitted to the Governor and the Legislature within thirty (30)
2 days.

3 ~~H.~~ I. Any person or student organization aggrieved by a
4 violation of this section may bring an action against the public
5 institution of higher education and its employees acting in their
6 official capacities responsible for the violation and seek
7 appropriate relief, including, but not limited to, injunctive
8 relief, monetary damages, reasonable ~~attorneys'~~ attorney fees, and
9 court costs. Any person or student organization aggrieved by a
10 violation of this section may assert such violation as a defense or
11 counter claim in any disciplinary action or in any civil or
12 administrative proceedings brought against such student or student
13 organization. Nothing in this subsection shall be interpreted to
14 limit any other remedies available to any person or student
15 organization.

16 ~~I.~~ J. A person shall be required to bring suit for violation of
17 this section no later than one year after the day the cause of
18 action occurs. For purposes of calculating the one-year limitation
19 period, each day that the violation persists and each day that a
20 policy in violation of this section remains in effect shall
21 constitute a new day that the cause of action has occurred.

22 ~~J.~~ K. If any provision of this section or any application of
23 such provision to any person or circumstance is held to be
24 unconstitutional, the remainder of the section and the application

1 of the provision to any other person or circumstance shall not be
2 affected.

3 SECTION 2. This act shall become effective July 1, 2026.

4 SECTION 3. It being immediately necessary for the preservation
5 of the public peace, health or safety, an emergency is hereby
6 declared to exist, by reason whereof this act shall take effect and
7 be in full force from and after its passage and approval.

8

9 60-2-17134 AQH 03/11/26

10

11

12

13

14

15

16

17

18

19

20

21

22

23

24